PRUDENTIAL

For Every *Life*, For Every *Future*

PRULife

PRUDENTIAL

Thank you for choosing Us as your life insurance partner, we are glad to have you as our customer.

This insurance Policy is a legal contract between you, the Policyholder and us, Prudential Life Assurance Kenya, ('the Company'). This Policy, identified by its unique number, is issued based on a proposal and declaration that you have made and that we have accepted. It comprises the Application, these Policy Terms and Conditions and the Policy Schedule, together with any endorsements that may be issued by the Company from time to time.

This document provides all the important information about our PRULife PLan. We recommend that you read this document fully and carefully, together with the Policy Schedule. You should keep all these documents together in a safe place for future reference.

We will, subject to these Terms and Conditions and, on the occurrence of a claim event on a person(s) named and covered under this Policy (the Life Assured), pay the applicable benefit shown in the Policy Schedule to the person or persons entitled to receive such payment subject to provision of all the necessary documentation. Our commitment is to fulfil all the promises we make to you and all our customers.

As part of the application process for this Policy, you provided us with personal information that would help us assess risk, comply with the law, communicate with you and pay claims when they fall due. Any fraud, concealment, or deliberate misstatement of fact in the application will render this Policy null and void. By accepting this Policy, you agree that we can use the information you provided to fulfil our obligations under this Policy. We are committed to safeguarding your personal information and will only use it for the purposes for which it was collected and to comply with the law.

This Policy document will help you affirm that this Policy is right for you. If you are not satisfied with it, you have the right to change your mind within thirty (30) calendar days of receipt of this Policy document and to request a refund of all premiums paid.

We have the right to cancel this Policy if we establish that you did not comply with any conditions of the contract, if you fail to comply with any applicable laws and/or if continuing with the Policy will lead us to a breach of our regulatory obligations. We shall communicate to you in writing and provide the reasons for such a cancellation.

For additional information, service, claim notification or to report a complaint, please write to us via email cs@prudentiallife.co.ke, SMS 21799, WhatsApp 0705 973374, dial *857# or call us on 0719 075000.

In keeping with our commitment to protect the environment, we have adopted electronic means of communication as our primary mode of communication and will be glad to serve you through any of the electronic communication channels most convenient for you.

I take this opportunity to welcome you to the Prudential family.

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Gwen Kinisu
Chief Executive Officer

PRUDENTIAL

Table of Contents

Definition of Terms 1

Policy Terms 1

a. The Plan 1

i. PLAN A: Whole Life Cover 1

ii. PLAN B: Whole Life Cover with Accelerated Critical Illness 2

b. Joint Life Cover 2

c. Bonus 2

d. Claims Process 3

e. Medical Examination 3

General Terms 4

1. Governing Laws and Territorial Limits 4

2. The Insurer 4

3. Communication and Transactions 4

4. Policy Changes and Revocation 4

5. Sanctions Compliance 4

6. Premium Payments and Currency 4

7. Cover Commencement 4

8. Policy Cancellation 5

9. Waiting Period 5

10. Grace Period 5

11. Reinstatement 5

12. Insurance Relief 5

13. Entry Age 5

14. Review of Policy Benefits 5

15. Surrender value 5

16. Beneficiary Nomination and Update 6

17. Policy Assignment 6

18. Exclusions 6

Appendix 1 – Critical Illness Descriptions 7

PRUDENTIAL

Definition of Terms

Accident - A sudden, violent and unexpected visible external event that causes physical injury to the body or death of the life assured

Assignment – the use of defined benefits on this Policy as security for a loan from a licensed credit institution

Beneficiary – a natural person or legal entity who is nominated by the policyholder to receive and receives the benefits due in the event of death of the policyholder.

Guardian – a natural person nominated by the policyholder to oversee the benefits and interests of a minor who has been nominated as a beneficiary.

Lapse – also called inactive. The status of a policy whose premiums have not been paid regularly to support the continued active status and whose benefits are no longer available to the policyholder, beneficiary or policy assignee.

Life assured – you, the policyholder, the person whose life is covered on this Policy.

Policy - the legal contract between the policyholder and the Company, comprising the Application, the Policy Schedule, these Terms and Conditions and any attaching Policy exclusions, together with any endorsements made by you and or any issued by the Company.

Policy Anniversary – the date your Policy started in every subsequent year until the Policy term ends.

Policy document – this document which contains the Terms and Conditions, definitions and responsibilities of all the parties to the contract.

Policy schedule – an appendix to this policy document, issued after the activation of the Policy, which lists the specific details of the Policy including the names of the applicant, lives assured, beneficiaries, benefit amounts amongst others.

Policy Term – This refers to the period that you have selected to have your Policy run for, which for this product is the whole of your life.

Policyholder – also the policy owner. You, the person who has applied for this Policy and is therefore its owner.

Premium Term – This refers to the period for which you have selected to pay premiums for the Policy.

Reinstatement – the process to restore a policy that is inactive (lapsed), into an active status where all the benefits and options become available to the policy owner.

Rider - a provision that adds to or enhances the benefits of a basic insurance policy.

Sanctions - restrictive measures imposed on targeted regimes, countries, governments, entities, individuals and industries by international bodies or governments, including but not limited to the Office of Financial Sanctions Implementation HM Treasury, the United Nations, the European Union, the US Treasury Department's Office of Foreign Assets Control and the Hong Kong Monetary Authority.

Sum assured - The amount of money payable against this Policy in the event of a loss of life of the person covered under the Policy.

Us/We – also 'the Company'. This refers to Prudential Life Assurance Kenya (PLAK)

Waiting period - the time, from the start of the Policy, that you have to wait before some or all the benefits become payable. During the stipulated waiting period, you cannot make a claim.

You – see Policyholder.

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Policy Terms

a. The Plan

- PRULife is a protection plan giving you protection in the event of death, critical illness or total and permanent disability for the whole of your life!
- It offers you the option to cover your spouse in addition to yourself
- It helps create an immediate estate for your dependents, helping your family maintain their lifestyle without having to sell land or property
- It helps you and your family offset the financial strain of critical illness in the event that you or your spouse are diagnosed with a critical illness defined in the Policy
- It provides an option to double the cover for accidental death or disability
- It offers attractive bonuses throughout the lifetime of the Policy
- It offers flexible premium payment terms, allowing you to finish paying premiums within a shorter period
- No medical examination is required for sums assured of up to KES 15 million.
- It offers insurance tax relief of 15% of the premium, up to a maximum of Kes 60,000 annually

Who can buy this product?

- Minimum age at entry: 18 years
- Maximum age at entry: 60 years

How much cover can one get?

- Minimum Sum Assured: KES 1 million
- Maximum Sum Assured: KES 500 million – For an application with sums assured above Kes 150 million, acceptance will be on a case-by-case basis and for portions of the total requested amount; with considerations including your existing insurance cover amongst others. The arrangement for these additional amounts may take up to a month and as such, we encourage you to begin with the cover of Kes 150 million as the additional arrangements are concluded.

For how long should one pay premium?

You get to choose how long you want to pay premiums for, with the options being:

- For Life
- Up to the age of 60 or 65 years old (note: to pay premiums up to age 60 years, one must be 55 years old or younger at entry)
- For the next 10, 15 or 20 years – if you choose these premium terms, once you have completed paying all the premiums within the term, no further premium shall be payable by you and you shall continue to enjoy cover for the rest of your life.

Premium payment frequency can be monthly, quarterly, semi-annually or annually. The premium determined at the start of the Policy shall remain the same for the full premium term unless you change the premium frequency or premium term in which case, we shall recompute the premium due to align to your requested changes.

i. PLAN A: Whole Life Cover

On death of the life assured, 100% of the Policy sum assured plus accrued bonuses will be paid to the nominated beneficiary or to your estate if there is no nominated beneficiary.

Please refer to clause C, death benefit section, on the documentation required to make a claim. The Policy ends on payment of a death benefit.

Additional benefits

You may enhance the benefits available on your Policy by purchasing one or both additional benefits available subject to the conditions below:

Critical Illness Benefit

This provides additional protection in the event of critical illness. This additional sum assured is paid for the first time diagnosis of a critical illness defined under this Policy before the age of 65.

You choose how much additional protection you want - the additional sum assured can be between KES 1 million and KES 15 million (but no more than 50% of the main policy sum assured).

The critical illnesses covered under this benefit are accidental brain damage, Alzheimer's disease, aorta surgery, blindness, cancer, coma, coronary artery surgery, heart attack, major organ transplant, motor neuron disease, multiple sclerosis, muscular dystrophy, paraplegia/paralysis, Parkinson's disease, renal failure, replacement of heart valve, rheumatoid arthritis before the age of 60 and stroke. For a full definition of these medical terms, please review Appendix 1.

Please refer to clause C, critical illness section, on the documentation required to make a claim. On payment of the critical illness benefit, this benefit ceases and the main policy will continue to be in-force as per the original policy terms, subject to payment of the remaining premiums due under the Policy.

Accident Benefit

This cover provides additional protection in the event of death or total and permanent disability caused by an accident and may be issued to an applicant between the ages of 15 and 59 years. The cover limit on this benefit can be between KES 1 million and KES 20 million on condition that the additional cover is not more than 100% of your main policy sum assured. This additional sum assured is paid in the event of accidental death or total and permanent disability before the age of 65.

Please refer to clause c below for the evaluation criteria and documentation requirements for an accidental permanent and total disability claim. On payment of the accidental total and permanent disability benefit, this benefit ceases and the main policy will continue to be in force as per the original policy terms, subject to payment of the remaining premiums due under the Policy.

The Policy ends on payment of a death benefit.

ii. PLAN B: Whole Life Cover with Accelerated Critical Illness

On first time diagnosis of a critical illness as defined in this Policy of either life assured, occurring after the policy commencement date and subject to the waiting period:

a) We will pay the diagnosed life assured 50% of the policy sum assured, but capped at a maximum of Kes 15 million, and
b) All future main benefit premiums due on the Policy from the date of diagnosis will be waived by the company.

The critical illnesses covered under this benefit are accidental brain damage, Alzheimer's disease, aorta surgery, blindness, cancer, coma, coronary artery surgery, heart attack, major organ transplant, motor neuron disease, multiple sclerosis, muscular dystrophy, paraplegia/paralysis, Parkinson's disease, renal failure, replacement of heart valve, rheumatoid arthritis before the age of 60 and stroke. For a full definition of these medical terms, please review Appendix 1.

The accelerated critical illness cover will terminate on payment of a critical illness claim. On death of either life assured:

a) If a critical illness claim has been paid, the remaining 50% of the policy sum assured plus accrued bonuses will be paid to the nominated beneficiary or the estate of the policy owner if there is no nominated beneficiary.
b) If a critical illness claim has not been paid under this Policy, 100% of the policy sum assured plus accrued bonuses will be paid to the nominated beneficiary or the estate of the policy owner if there is no nominated beneficiary.

The Policy ends on payment of a death benefit.

Accident Benefit

The additional sum assured under this benefit shall be between KES 1 million and KES 20 million but cannot exceed the main benefit sum assured.

This additional sum assured is payable in the case of death due to an accident or permanent and total disability due to an accident. Please refer to clause c below for the evaluation criteria of an accidental permanent and total disability claim.

In addition, payment of an accidental death or disability claim will terminate this accident cover however, the benefits on the main policy will continue to be active as per the original policy terms subject to payment of the premiums due under the Policy.

The Policy ends on payment of a death benefit.

b. Joint Life Cover

This Policy has an option for coverage of two individuals under the one policy where the first life is you, the applicant and the second life is your spouse.

Both plan A and B allow a joint life cover option at a discount. Death and critical illness benefits are paid on first death or diagnosis basis. The Policy ends on payment of death benefits.

The selected critical illness sum assured will be paid to the diagnosed life assured on first time diagnosis of a critical illness (as defined in this Policy), before the life assured has attained the age of 65, occurring after the policy commencement date and subject to the waiting period.

On total and permanent disability of either life assured due to an accident before age 65, the additional sum assured is paid to the life assured who is permanently disabled.

On death of either life assured due to an accident while this additional benefit is in-force, the additional sum assured will be paid to the surviving life assured together with the death benefit on the main cover. If there is no surviving life assured, benefits will be paid to your nominated beneficiary(s).

c. Bonus

This Policy will receive a bonus which will be declared on an annual basis and at a rate to be determined by Us. The bonus will be credited to your Policy after the first full calendar year of the Policy being active. If you have made a claim on the Policy so that a waiver of premium is in effect, there will be no bonuses paid from the point and for the period the waiver of premium is active.

The accumulated bonuses on the Policy cannot be withdrawn and will be paid out together with the main death benefit.

d. Claims Process

The documents required for a claim presented by you or by your nominated beneficiary(s) to be admitted are listed below. Whereas we have made every effort to be exhaustive on these requirements and whereas in majority of the claims these documents are adequate for us to assess and admit a claim, in some unique circumstances, we may require additional documentation and/or a review by a medical specialist. In those circumstances, we will share with you or your nominated beneficiary(s) the additional information or action required.

Death Benefit

To make a claim, your nominated beneficiary(s) will be required to provide us the following documents:

a) A completed claim form – the form will be available on our website and at our head office or branches.
b) A copy of the identification document of the claimant
c) A copy of the death certificate

Accident benefit

A claim under permanent and total disability due to accident shall be considered admissible on the below evaluation:

a) total loss or loss the use of:
   i) Two limbs above the wrist or ankle.
   ii) Two feet - meaning the loss or loss of use of both ankles with evidence of permanently irreversible joint destruction.
   iii) Two hands - meaning the loss or loss of use of both wrists with evidence of permanently irreversible joint destruction.
   iv) Sight in two eyes.
   v) Speech - meaning the total and irrecoverable loss of the ability to speak for a continuous period of twelve (12) months.
   vi) Hearing - meaning the total and irrecoverable loss of hearing in both ears for a continuous period of twelve (12) months.

   OR

a) Inability to perform at least 4 out 6 Activities of Daily Living (ADLs). The six basic ADLs are:
   i) Washing/Bathing – the ability to maintain an adequate level of cleanliness and personal hygiene.
   ii) Dressing – the ability to put on and take off all necessary garments, artificial limbs or other surgical appliances that are medically necessary.
   iii) Feeding/ Eating – the ability to transfer food from a plate or bowl to the mouth once food has been prepared and made available.
   iv) Continence – the ability to manage bowel and bladder function, maintaining an adequate and socially acceptable level of hygiene.
   v) Mobility – the ability to move indoors from room to room on level surfaces at the normal place of residence.
   vi) Transferring – the ability to move from a lying position in a bed to a sitting position in an upright chair or wheelchair and vice versa.

To make a claim, in addition to the documents listed under Death Benefit, you or your nominated beneficiary(s) will provide

a) A completed claim form – the form will be available on our website and at our head office or branches.
b) A copy of the identification document of the claimant
c) Medical reports evidencing the disability
d) A completed attending-physician form
e) A police report if the disability is as a result of an accident

Critical Illness benefit

To make a claim, in addition to the documents listed under Death Benefit, you or your nominated beneficiary(s) will provide:

a) A completed claim form – the form will be available on our website and at our head office or branches.
b) A copy of the identification document of the claimant
c) Medical report(s) evidencing the critical illness
d) A completed attending-physician form

e. Medical Examination

You can apply for this Policy without providing medical evidence for a limited amount of sum assured (free cover limit); we review this amount from time to time and is currently set at KES 15 million. Should your total cover (the sum assured under this Policy together with sum assured of all the other policies you already have with us) exceed the above limit, we shall notify you to provide medical exam results necessary for us to properly structure your benefits.

We will handle your medical exam results with utmost confidentiality and will only use them to provide you cover under this Policy. We will bear the cost of the medical exam subject to your sum assured being above the prevailing limit. For your convenience, we have a list of hospital/clinics that we partner with and where you can receive an express service. Should you be residing in a geographical area where we do not have a listed hospital/clinic near you, you can undertake your medical examination at a government accredited medical facility near you and, we shall reimburse your costs subject to a capping determined based on the exam results we require.

For a policy whose sum assured is below the set free cover limit and should you choose to submit medicals to waive the waiting period (refer to clause 9 under General Terms), we shall provide you with the list of medical exam results required and a list of our preferred medical examination providers however, you shall bear the cost of the examination.

General Terms

1. Governing Laws and Territorial Limits

The Laws of the Republic of Kenya will govern this Policy and any question of law shall be decided in accordance with the Laws and the Judicial systems of the Republic of Kenya. This Policy shall also be subject to international treaties that Kenya has signed.

Any new laws or changes to existing laws which upon coming into effect have an impact on the Policy may result in the adjustment of benefits, premiums and/or policy terms and conditions as appropriate. Notice of such adjustment shall be sent to your last updated email or mobile contact as recorded with us.

This contract is entered into with a person who is a Kenyan citizen, either permanently residing in or outside Kenya, or a Kenyan resident who lives and works in the territory and who may subsequently reside in any part of the world without payment of an extra premium.

2. The Insurer

Prudential Life Assurance Kenya (PLAK) is the Insurer as licensed and regulated by the Insurance Regulatory Authority (IRA). We are located at Vienna Court, State House Crescent, State House Road in Nairobi. You can reach us through SMS 21799, WhatsApp 0705 973374, email at cs@prudentiallife.co.ke or call 0719 075 000.

3. Communication and Transactions

We will keep in touch with you regularly through the contact information provided in your application form and for that reason we encourage you to keep your contact information up to date in order to receive our communication. We will share updates on the Company, the product(s), the services related to the product as well as any communication related to benefit payments. In addition, on a predetermined frequency, we will invite you for feedback to allow us to understand how we can best serve you. While the feedback is voluntary, we encourage you to participate so that we have an opportunity to better meet your expectations.

The information that you have shared for the purpose of this Policy is confidential and will be safeguarded in accordance with all applicable laws, provisions and requirements in force at any given time. Should your email address, mobile number or any other means of communication in our records change or be terminated and this information is not provided to us, we will not be liable for any information gaps and any information or financial loss occasioned by the use of incorrect contact data to communicate or transact with you.

4. Policy Changes and Revocation

Changes to the law and/or regulations may cause us to amend, revoke or alter any terms of this contract. We will give you thirty (30) calendar day notice of any such changes and thereafter, issue a formal endorsement to register the changes.

5. Sanctions Compliance

Regardless of anything to the contrary contained in this Policy Document, if (i) we learn or are notified that you, any beneficial owner, individual or entity that is associated with the application during your onboarding, or with the Policy during the period it is active, is named on any Sanctions list, or (ii) if we or any bank or other relevant third party could be found to be in breach of Sanctions obligations as a result of taking any action under this Policy, then we may (a) decline the application, (b) terminate the Policy with immediate effect and/or (c) take any other action we may deem appropriate, including but not limited to notifying any relevant government authority, withholding any payments, freezing any monies paid to us, and transferring any such payments or monies to the designated government authorities in accordance with applicable laws, regulations and/or court directives. We shall not be liable for any losses of whatever nature that you or anyone else may incur as a result of us taking action under this clause. This clause, and our ability to claim for any losses that we may incur arising out of the operation of this clause, shall survive any termination of this Policy.

6. Premium Payments and Currency

You are required to pay the periodic premiums due for this Policy based on the frequency, either monthly, quarterly, semi-annual or annual, you selected in your application. All premiums shall be payable to us through our official bank accounts and mobile wallet options within the Republic of Kenya and in the currency of the Republic of Kenya.

Premiums received when due or in arrears, will be utilized to fund your Policy and ensure that it remains active. Any overpayments will be refunded to you upon request and will be made back to their source accounts. In the absence of a refund request for overpayments, the amounts shall be maintained in your Policy and utilized to cover premiums for future periods when they fall due otherwise they shall be paid out together with any claim that terminates the Policy.

You may choose to amend the payment frequency by making a request to us; such a request will only take effect on the anniversary of the Policy.

Our staff and agents are not authorized to receive money on our behalf and we shall take no responsibility for funds paid to other entities or persons by error or for onward payment to us. In addition, if premiums are received into your Policy from unregistered or previously unknown sources, we may require additional documentation to identify the source of funds and thereafter determine whether to accept such amounts.

7. Cover Commencement

Your cover will start once we receive and accept your application and your first premium payment. Benefits will then be payable subject to other conditions in this Policy.

8. Policy Cancellation

If you are not satisfied with this Policy, you have the right to change your mind within thirty (30) calendar days of receipt (free-look period) of this Policy document and to request a refund of all premiums paid.

After the free-look period has passed, you can cancel the Policy by giving written instructions to us; any premiums received and utilized are not refundable unless at the time of issuing the instruction, there is a premium overpayment on the Policy in which case, the overpayment, equivalent to the unutilized monthly installment premiums paid into the future shall be refunded to you. Please note that cancellation of the Policy after the free-look period will lead to financial loss and we therefore urge you to carefully consider this decision.

9. Waiting Period

For the life assurance benefits, a six (6) month waiting period applies from the start of the Policy or at its reinstatement for any death or disability claims from natural causes except where you have provided medical exam results (refer to clause d under Policy Terms) at the start or at reinstatement of the Policy.

There is no waiting period for Accidental Death or Accidental Disability benefit; you or your beneficiary(s) can make a claim at any time after the Policy starts.

Should you lose your life or be disabled by causes other than an accident during the waiting period, we shall refund the premiums you have paid for the continuous period that the Policy has been active. If your Policy had been inactive and was subsequently reinstated, only the premiums received after reinstatement will be refunded.

10. Grace Period

You are allowed a period of 90 days (known as the grace period) from the premium due date within which you are required to make the payments that are due. The Policy will be in force during the grace period and any benefit arising will be payable.

If you fail to pay the premium after the grace period has expired your Policy will lapse and no benefits under the policy will be payable. However, under certain circumstances (see clause 11) you may be able to reinstate the Policy.

11. Reinstatement

If your Policy lapses due to non-payment of premium and, has not been lapsed for more than 24 consecutive months, it can be reinstated to full benefits subject to you:

i) Requesting formally for the Policy to be reinstated. We shall review your request and formally confirm acceptance of reinstatement.
ii) Paying all outstanding premiums – upon our acceptance, you will pay all outstanding premiums and receive a formal notice from us of the reinstatement of your benefits.
iii) Meeting all other requirements - depending on your cover amount and the period the Policy has been lapsed, you will be required to submit additional information that may include submitting evidence of good health, submitting current medical exam results (see clause d in the Policy Terms section) and/or financial evidence of ability to support future premium payments.

Our acceptance of reinstatement of a Policy shall be in writing; we reserve the right to accept or reject a reinstatement request and to ask for additional relevant information needed to arrive at this decision.

12. Insurance Relief

This Policy allows you to enjoy insurance relief subject to the Income Tax Act. The prevailing insurance relief is 15% of the premium paid, up to a maximum of KES 60,000 annually. On request, we will provide you with an Eligibility Certificate that you can present to your employer so that the tax relief is part of your pay-as-you-earn computation. Alternatively, we shall provide you with an insurance relief certificate to enable you to claim the insurance relief during your annual tax filing process.

13. Entry Age

You can purchase this Policy at any time after you turn 18 and before your 60th birthday. Once you have bought the Policy, you will pay the premiums based on the premium term that you have selected.

14. Review of Policy Benefits

You may decrease the Policy sum assured by submitting your request to us at any time up to 12 months before the end of the premium payment term subject to your proposed sum assured remaining within the minimum sum assured.

Should you wish to increase policy benefits under this product at the time the Policy is already active, the option available is to purchase a new policy for the additional cover amount. For such increase in benefits, you may be requested to provide additional medical and financial assessment information.

Any changes to the policy benefits or term will require the Policy to be active; we shall issue an endorsement to formally record any such changes.

15. Surrender value

This Policy does not acquire a cash value and therefore cannot be surrendered for cash payment.

16. Beneficiary Nomination and Update

You are required to nominate at least one beneficiary at the start of your Policy. Thereafter, you may nominate additional beneficiary(s), change, or cancel the appointment of a beneficiary(s) or guardian at any time by notifying us in writing. This notification will be effective only when received together with the necessary requirements (as may be determined by Us from time to time). No provision in any will and last testament executed by you will have the effect of cancelling the appointment of a beneficiary(s).

17. Policy Assignment

You have the option to assign this Policy as collateral for a loan. The assignment will take effect once you notify us by duly completing the assignment form. The benefits payable on the Policy will be disclosed to the credit institution (assignee) you choose to assign your benefits to. The assignment will remain active until the institution you have assigned the Policy to issues a formal release to Us.

You will bear the sole responsibility to ensure regular payment of the premiums under this Policy as and when due and there shall be no benefit payable to the assignee in the event that the Policy is lapsed. The Policy shall be deemed lapsed if payment is not received within the grace period defined under clause 10.

We will notify the assignee before payment of any benefit on the Policy and they will be required to issue us with a formal release; otherwise, any benefits that become payable while the assignment is in force shall first be utilized to settle the outstanding loan owed to the assignee with only the remainder being paid to you or to your appointed beneficiary(s) indicated on the Policy. Should you decide to assign your benefits to more than one institution, priority on payment will be given in the order of assignment with the older assignments being given preference.

Benefits will be payable subject to the terms and conditions of your Policy. We will bear no liability for any loan that remains outstanding after settling the benefits due on the Policy.

We will only accept assignments to institutions licensed in Kenya and whose license allows operation of credit products.

18. Exclusions

We will not accept liability for claims occurring as a result of any of the exclusions listed below:

i) Suicide or any self-inflicted injury occurring within two years from the commencement of the Policy.
ii) Any act committed by you or a beneficiary(s) which constitutes a violation of criminal law.
iii) Abuse of alcohol, willful inhalation of gas, self-inflicted injury, willful exposure to radioactivity or the willful consumption of poison or overdose of drugs (whether the drugs have been prescribed by a medical practitioner or not).
iv) Failure to seek or accept professionally recommended medical intervention for a known health condition or discontinuation of such an intervention and where the occurrence of the insured event is directly attributable to the refusal.
v) Except for those deployed by the disciplined forces of the Republic of Kenya, any act of war (whether war be declared or not), military action, terrorist activities, riots, strikes, civil commotion or insurrection in all cases as an active participant.
vi) Active participation in mountaineering, horse riding, hunting, motor-racing, power-boat racing or fighting (except in self-defense).
vii) Participation in any form of aviation other than a scheduled air service over an established passenger route.
viii) Failure to disclose or misstatement of information we have requested for and which you already have and where this information is material to this contract so that if we had known the correct position initially, we would have changed some of the contract terms or not accepted your application. Once such information comes to light, we shall exercise our right to review the policy benefits or cancel the Policy. Should we opt to cancel the Policy, we shall refund all premiums received less of administration costs incurred except if we determine that there was fraudulent intent.

Appendix 1 – Critical Illness Descriptions

The below constitutes descriptions of all the critical illnesses covered under this contract:

Critical Illness	Condition Definition
Accidental Brain Damage	Permanent impairment of intellectual capacity as a result of brain damage sustained in an Accident, as defined. Evidenced by the need for permanent supervision in order to care for and protect the Life Assured. An accident is defined as an external, unexpected event that is not traceable, even indirectly, to the Life Assured's state of mental or physical health before the event. A claim under this condition invalidates a claim under paralysis or coma.

Alzheimer's disease	Being a degenerative form of dementia (loss of cognitive ability) where the insured must exhibit the loss of intellectual capacity involving the impairment of memory and judgment, which results in a significant reduction in mental and social functioning and requires a minimum of eight (8) hours daily supervision. No benefit is payable for all other dementing organic brain disorders and psychiatric illnesses.
	
	Criteria for a claim involves:
	• confirmation by a Consultant Neurologist, Psychiatrist or Geriatrician of the disease before age 60.
	• There must be permanent clinical loss of the ability to do all of the following:
	  ○ remember;
	  ○ reason; and
	  ○ perceive, understand, express and give effect to ideas.
	
	For the above definition, other types of dementia are not covered. A claim under this condition invalidates a claim under Parkinson's disease.

Aorta Surgery	Aorta surgery is a disease of the aorta needing excision and surgical replacement of the diseased aorta with a graft. For the purposes of this definition aorta shall mean the thoracic and abdominal aorta but not its branches. For the above definition, the following are not covered: • Any other surgical procedure, for example the insertion of stents or endovascular repair. • Surgery following traumatic injury to the aorta.
Blindness	This involves permanent and irreversible loss of sight in the two eyes without any possible recovery. Criteria for a claim involves confirmation by an ophthalmologist of: • A visual acuity of 3/60 or less (0.05 or less in the decimal notation) in the better eye after best correction, or • A visual field of less than 10° diameter in the better eye after best correction.

Cancer	A disease manifested by the presence of a malignant tumour characterised by the uncontrolled growth and spread of malignant cells and the invasion of normal surrounding tissue. This includes leukaemia, lymphoma, Hodgkin's disease and mixed tumours of the parotid gland. Such cancer as defined above must be positively diagnosed by a Medical Practitioner qualified in the appropriate specialty of pathology.
	
	For the above definition, the following are not covered:
	• All cancers which are histologically classified as any of the following:
	  ○ pre-malignant;
	  ○ non-invasive;
	  ○ cancer in situ or melanoma in situ
	  ○ having borderline malignancy; or
	  ○ having low malignant potential;
	• All tumours of the prostate unless histologically classified as having a Gleason score of 7 or above or having progressed to at least TNM classification T2bN0M0.
	• Chronic lymphocytic leukaemia unless histologically classified as having progressed to at least Binet Stage A.
	• Any skin cancer (including cutaneous lymphoma) other than malignant melanoma that has been histologically classified as having caused invasion beyond the epidermis (outer layer of skin).
	• Tumours in the presence of any human immuno-deficiency virus are excluded.

<table>
<tr><th>Critical Illness</th><th>Condition Definition</th></tr>
<tr><td>Coma</td><td>
The diagnosis of a coma of a specified severity by a neurologist or neurosurgeon.
Evidence or symptoms that must be present before a claim will be considered:
• Decreased level of consciousness, with a Glasgow Coma Scale of less than 9, and
• The coma is constant and present for greater than 21 days.

A claim under this condition invalidates a claim under paralysis or stroke.
The Glasgow coma scale used to score will be as indicated below:

<table>
<tr><th>Motor Response</th><th>Score</th></tr>
<tr><td>Obeys commands</td><td>5</td></tr>
<tr><td>Localizes pain</td><td>4</td></tr>
<tr><td>Abnormal flexion</td><td>3</td></tr>
<tr><td>Extension to pain</td><td>2</td></tr>
<tr><td>None</td><td>1</td></tr>
</table>
<table>
<tr><th>Eye Opening</th><th>Score</th></tr>
<tr><td>Spontaneous</td><td>4</td></tr>
<tr><td>To speech</td><td>3</td></tr>
<tr><td>To pain</td><td>2</td></tr>
<tr><td>None</td><td>1</td></tr>
</table>
<table>
<tr><th>Verbal Response</th><th>Score</th></tr>
<tr><td>Orientated</td><td>5</td></tr>
<tr><td>Confused</td><td>4</td></tr>
<tr><td>Inappropriate words</td><td>3</td></tr>
<tr><td>Incomprehensible sounds</td><td>2</td></tr>
<tr><td>None</td><td>1</td></tr>
</table>
This definition specifically excludes medically induced coma.
</td></tr>
<tr><td>Coronary Artery Surgery</td><td>
Coronary artery surgery is the actual undergoing of bypass surgery (either saphenous vein or internal mammary graft) to correct narrowing or blockage of one or more coronary arteries with by-pass grafts. Confirmation of coronary artery disease by angiography is required, including surgical reports of the bypass graft.

This benefit excludes percutaneous angioplasty and/or intra-arterial procedures not necessitating thoracotomy.

A claim under this condition invalidates a claim under Heart Attack.
</td></tr>
<tr><td>Heart Attack</td><td>
Heart attack being the death of a portion of the heart muscle resulting from a blockage of the coronary arteries.

The diagnosis being evidenced by:

• a history of prolonged chest pain
• new electrocardiograph changes indicative of heart muscle death
• imaging evidence of new loss of viable heart muscle
• elevation of cardiac enzymes above recognized standard laboratory level of normal results:
  ○ Troponin T > 200 ng/L (0.2 ng/ml or 0.2 ug/L)
  ○ Troponin I > 500 ng/L (0.5 ng/ml or 0.5 ug/L)
  ○ (and in the case of CPK this must be a CPK – MB measurement)

For the above definition, the following are not covered:

• Other acute coronary syndromes
• angina without myocardial infarction

A claim under this condition invalidates a claim under Coronary Artery Surgery.
</td></tr>
<tr><td>Major organ transplant</td><td>
The human to human organ transplant from a donor to the Insured Person of one or more of the following organs: Kidney, Heart, Lung, Heart-Lung, Liver or Pancreas. The transplant of Bone Marrow is included. The transplantation of all or other organs, parts of organs or any other tissue transplant is excluded.

Claim under this condition invalidates a claim under Renal Failure.
</td></tr>
<tr><td>Motor Neuron Disease</td><td>
The progressive, irreversible degeneration of corticospinal tracts and anterior horn cells or bulbar efferent neurons.

This includes:

• spinal muscular atrophy
</td></tr>
</table>

Critical Illness	Condition Definition
	• progressive bulbar palsy • amyotrophic lateral sclerosis • primary lateral sclerosis. A claim under this condition invalidates a claim under paralysis or coma.
Multiple Sclerosis	Criteria for a claim involves confirmation of an unequivocal diagnosis of Multiple Sclerosis by a Consultant Neurologist. There must be current clinical impairment of motor or sensory function, which must have persisted for a continuous period of at least six (6) months. Proof will need to be provided through: • A well-documented history of exacerbation and remissions of said symptoms/neurological deficits for more than six (6) months. • Symptoms referable to tracts (white matter) involving the optic nerves, brain stem and spinal cord, producing well-defined neurological deficits; • MRI showing changes caused by multiple sclerosis such as a multiplicity or discrete lesions. • Lumbar puncture high levels of proteins and other substances that are signs of the disease. • Evoked potentials confirming the specific parts of the brain that Multiple Sclerosis has affected.
Muscular Dystrophy	The muscular dystrophies are an inherited group of progressive muscular disorders resulting from defects in several genes required for normal muscle function. Diagnosis is by a consultant neurologist and evidenced by: • A muscle biopsy • DNA (genetic) testing • Imaging studies • Electromyography or nerve conduction tests • Blood enzyme tests Evidenced by the irreversible inability to perform, without assistance, three or more of the following activities of daily living: • bathing; • dressing; • using the lavatory; • eating; Moving in or out of a bed or a chair.
Paraplegia & Paralysis	The total and permanent loss of use of either legs or both arms through paralysis. Total loss of muscle function of sensation to the whole of both the lower limbs and/ or both upper limbs as a result of injury or disease. Disability must be established for a continuous period of 12 calendar months and be supported by objective specific and relevant medical investigations. A claim for a stroke that has caused paraplegia invalidates this benefit.
Parkinson's disease	A syndrome characterized by weakness and rigidity of muscles and a rhythmical tremor which is marked at rest but diminished by voluntary movement. This results in slowness of any voluntary movements, a fixed stooped posture, lack of facial expression and typical abnormalities of gait. Personality changes are common with a tendency to depression and dementia ensues as the disease progresses. Criteria for a claim involves: • Diagnosis and permanent symptom confirmation by a consultant neurologist. • Age below 60. For the above definition all other types of Parkinsonism or Parkinsonian syndromes and Parkinsonism resulting from the side-effects of medication are excluded. A claim under this condition invalidates a claim under Alzheimer's disease.
Renal failure	Renal failure is the chronic irreversible total failure of both kidneys necessitating regular renal dialysis or transplantation. Claim under this condition invalidates a claim under major organ transplant relating to Kidney.
Replacement of Heart Valve	Replacement of Heart Valve is the undergoing of surgery requiring median sternotomy (surgery to divide the breastbone) to replace or repair one or more heart valves.

Critical Illness	Condition Definition
	A claim under this condition invalidates a claim under Heart Attack.
Rheumatoid Arthritis before the age of 60	Widespread chronic progressive joint destruction with major deformity affecting at least three (3) major joints (e.g. feet, hands, wrists, knees, hips). Diagnosis is by a consultant rheumatologist and evidenced by: • Inflammatory arthritis involving three or more joints. • Positive rheumatoid factor (RF) and/or anti-citrullinated peptide/protein antibody (such as anti-cyclic citrullinated peptide [CCP]) testing. • Elevated levels of C-reactive protein (CRP) or the erythrocyte sedimentation rate (ESR). • Diseases with similar clinical features have been excluded, particularly psoriatic arthritis, acute viral polyarthritis, polyarticular gout or calcium pyrophosphate deposition disease, and systemic lupus erythematosus (SLE). • The duration of symptoms is more than 6 weeks. • presence of rheumatoid nodules
Stroke	Stroke is any cerebrovascular incident producing neurological sequelae lasting more than twenty-four (24) hours and including infarction of brain tissue, intracranial and/or subarachnoid haemorrhage and immobilisation from an extra cranial source. Evidence of permanent neurological deficit must be produced through a full neurological examination by a specialist neurologist any time after three months. This examination should establish permanence for a valid claim. The following conditions are however excluded: • Transient ischaemic attack; • Vascular disease affecting the eye or optic nerve; • Death of tissue of the optic nerve or retina / eye stroke • Migraines and vestibular disorders; A claim under this condition invalidates a claim for paraplegia that can occur from a stroke.

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